

5 August 2022

Mr Richard Mclean

By email only: rich@richmclean.com.au

Dear Mr Mclean,

Re: 2016 Life Insurance Code of Practice (the Code)
Code subscribers: HCF Life Insurance Company Limited (HCF)
AIA Australia Limited (AIA)
Allianz Australia Life Insurance Limited (Allianz)
Our reference: CX14576, CX14577, CX14578

We refer to your three emails of 20 July 2022 outlining your concerns that Code subscribers HCF, AIA and Allianz may have breached their obligations under the Code.

We are writing to you on behalf of the Life Code Compliance Committee (Life CCC).

The Life CCC's role

The Code is the life insurance industry's commitment to mandatory customer service standards. The Code does not cover all life insurance companies but those companies that have adopted the Code have formally agreed to be bound by its standards.

The Life CCC is the independent body that monitors Code compliance. One of its roles is to investigate, where appropriate, reported possible Code breaches.

More information about the Code and the Life CCC is available here:

<http://www.lifeccc.org.au>

Our approach to Code breach allegations

The Life CCC does not investigate every breach allegation it receives. It uses all reports as a source of information to identify industry wide, serious or systemic issues.

When the Life CCC decides to investigate an issue and subsequently determines that a subscriber is required to undertake action to fix or prevent a breach, it has the authority to sanction subscribers where an insurer has failed to implement those actions within an agreed timeframe.

However, the Life CCC is not a court, tribunal or dispute resolution forum.

This means it cannot:

- mediate or resolve individual disputes,
- determine a person's legal rights or legal entitlements,
- order compensation, or

- provide individual outcomes.

For example, the Life CCC cannot order a Code subscriber to make a decision on your claim, accept your claim or pay you benefits under a policy.

We have reviewed the issues you raised

We have reviewed the information you have provided to us and have recorded the issues you have raised in our system under matters CX14576, CX14577 and CX14578. This type of information is used to inform the Life CCC's ongoing compliance monitoring work.

Should we require further information from you in the future, we may contact you on the details you have provided.

Thank you again for reporting your concern to us.

Code Compliance Team
On behalf of the Life Code Compliance Committee